
GOVERNMENT NOTICE

DEPARTMENT OF HEALTH

No. R. 655

12 August 2011

NATIONAL HEALTH ACT, 2003

REGULATIONS RELATING TO CATEGORIES OF HOSPITALS

The Minister of Health intends, in terms of section 35 read together with section 90 of National Health Act, 2003, (Act No. 61 of 2003), after consultation with the National Health Council, to make the regulations in the Schedule.

Interested persons are invited to submit any substantiated comments or representations on the proposed regulations to the Director-General: Health, Private Bag X828, Pretoria, 0001, within a period of two months from the date of publication of this notice.

SCHEDULE

Definitions

1. In these regulations any word or expression to which a meaning has been assigned in the National Health Act, 2003, shall have such meaning and unless the context otherwise indicates:-

“**post levels and salary scales**” mean post levels and salary scales as determined from time to time by the Minister for Public Service and Administration in terms of the Public Service Act, 1994 (Proclamation No. 103 of 1994) as amended.

Categories of public hospitals

2. The following are categories of public hospitals:

- (a) district hospital;
- (b) regional hospital;
- (c) tertiary hospital;

- (d) central hospital; and
- (e) specialized hospital.

District hospitals

3. (1) District hospitals are categorized into small, medium and large district hospitals with the following number of beds:

- (a) small district hospitals with no less than 50 beds and no more than 150 beds;
- (b) medium size district hospitals with more than 150 beds and no more than 300 beds; and
- (c) large district hospitals with no less than 300 beds and no more than 600 beds.

(2) A district hospital must –

- (a) serve a defined population within a health district and supports primary health care;
- (b) provide a district hospital package of care on a 24 hour basis;
- (c) have general practitioners and clinical nurse practitioners providing health services;
- (d) provide services that include in-patient and ambulatory health services as well as emergency health services.

(3) A district hospital receives outreach and support from general specialists based at regional hospitals.

(4) A district hospital may only provide the following specialist services-

- (a) paediatric health services,
- (b) obstetrics and gynaecology,
- (c) internal medicine; and
- (d) general surgery.

Regional hospitals

4 (1) A regional hospital must, on a 24 hour basis, provide -

- (a) health services in the fields of internal medicine, paediatrics, obstetrics and gynaecology, and general surgery and;
 - (b) health services in at least one of the following specialties—
 - (i) orthopaedic surgery;
 - (ii) psychiatry;
 - (iii) anaesthetics;
 - (iv) diagnostic radiology;
 - (c) trauma and emergency services;
 - (d) short term ventilation in a critical care unit; and
 - (e) services to a defined, regional drainage population, limited to provincial boundaries and receives referrals from several district hospitals.
- (2) A regional hospital receives outreach and support from tertiary hospitals.
- (3) A regional hospital has between 400 and 800 beds.

Tertiary hospitals

5. A tertiary hospital-

- (a) provides specialist level services provided by regional hospitals;
- (b) provides subspecialties of specialties referred to in paragraph (a);
- (c) provides intensive care services under the supervision of a specialist or specialist intensivist; and
- (d) receives referrals from regional hospitals not limited to provincial boundaries; and
- (e) has between 400 and 800 beds.

Central Hospitals

6. (1) A central hospital -

- (a) must provide tertiary hospital services and central referral services and may provide national referral services;
- (b) must provide training of health care providers;
- (c) must conduct research;
- (d) receives patients referred to it from more than one province;

- (e) must be attached to a medical school as the main teaching platform; and
- (f) must have a maximum of 1200 beds.

(2) Central referral services are provided in highly specialised units, require unique, highly skilled and scarce personnel and at a small number of sites nationwide.

(3) National referral services-

- (a) refer to super-specialised national referral units; and
- (b) represents extremely specialised and expensive services (e.g. heart and lung transplant, bone marrow transplant, liver transplant, cochlear implants).

Specialized hospitals

7. A specialized hospital-

- (a) provides specialized health services like psychiatric services, tuberculosis services, treatment of infectious diseases and rehabilitation services; and
- (b) has a maximum of 600 beds.

List of public hospitals

8. The list of public hospitals is attached hereto as an *Annexure* to these regulations.

Categories of private hospitals

9. Private hospitals are categorized into-

- (a) for profit private hospitals; and
- (b) not for profit private hospitals.

Management of public hospitals

10. (1) Public hospitals must be managed in accordance with national policy as determined from time to time by the Minister in terms of sections 3(1)(c) and 23(1) of the National Health Act, 2003.

(2) The policy referred to in subregulation (1) shall include:

- (a) management structures, post levels and salary scales;
- (b) delegations of functions;
- (c) list of health establishments; and
- (d) hospital boards.

11. The Minister shall publish in the *Gazette* the policy referred to in regulation 10.

Transitional measures

12. (1) Public hospitals that exist at the time of commencement of these regulations and that require time to effect changes to their structures, number of beds, services or any other matter in order to comply with these regulations shall effect such changes within such period, after the commencement of these regulations, as requested by the relevant Member of the Executive Council and approved by the Minister.

DR A MOTSOLEDI, MP
MINISTER OF HEALTH